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UNITED STATES BANKRUPTCY COURT

DISTRICT OF ARIZONA

In re: EXAMPLE DESERT HOLDINGS, LLC, *Debtor.*	Chapter 11 Case No. 2:26-bk-00000
EXAMPLE TRUSTEE, *Plaintiff,* v. EXAMPLE LENDER BANK, N.A., *Defendant.*	Adv. No. 2:26-ap-00000 **COMPLAINT TO AVOID AND RECOVER TRANSFERS AND FOR DECLARATORY RELIEF** Seeks avoidance and recovery of transfers under 11 U.S.C. §§ 547, 548 and 550, and a declaration of the parties' rights.

Plaintiff, the chapter 11 trustee of the estate of the above-named debtor, alleges as follows.

NATURE OF THE ACTION

1. This adversary proceeding recovers payments that the debtor made to Defendant in the ninety days before the petition date, while the debtor was insolvent, on account of a pre-existing antecedent debt. The payments are avoidable under 11 U.S.C. § 547(b), and the same transfers are avoidable under 11 U.S.C. § 548 to the extent they were made for less than reasonably equivalent value. Plaintiff seeks to avoid the transfers and recover their value for the benefit of the estate under 11 U.S.C. § 550.

2. The facts below are alleged on information and belief from the debtor's books, the loan file that Defendant produced, and the bank statements that the debtor's former controller delivered to Plaintiff. Plaintiff reserves the right to amend this complaint as discovery proceeds.

JURISDICTION AND VENUE

3. This adversary proceeding arises under title 11 and arises in the case under title 11 that is pending in this Court. The Court has jurisdiction under 28 U.S.C. §§ 157 and 1334 and under the general order of reference of the United States District Court for the District of Arizona.

4. This is a core proceeding under 28 U.S.C. § 157(b)(2)(F) and (H). Plaintiff consents to the entry of final orders and judgment by the bankruptcy judge in this proceeding, and asks the Court to enter them.

5. Venue is proper in this district and division under 28 U.S.C. § 1409(a) because the chapter 11 case that gave rise to this proceeding is pending here.

PARTIES

6. Plaintiff is the duly appointed chapter 11 trustee of the estate of Example Desert Holdings, LLC (the "Debtor"). Plaintiff brings this action under 11 U.S.C. §§ 323 and 704(a)(1) in that capacity.

7. The Debtor is an Arizona limited liability company with its principal place of business in Maricopa County, Arizona. The Debtor filed a voluntary petition under chapter 11 of title 11 on the petition date identified in the caption.

8. Defendant is a national banking association with its main office in Phoenix, Arizona. Defendant was a creditor of the Debtor and received the transfers described below.

FACTUAL BACKGROUND

The Debtor and Its Loan

9. Beginning in 2022, the Debtor borrowed money from Defendant under a revolving credit facility secured by its equipment and receivables. By the spring of 2026, the Debtor had drawn the facility to its limit and had defaulted in its monthly interest payments.

10. On information and belief, the Debtor's accounts receivable were insufficient to pay its trade creditors and its secured debt as the debts came due. The Debtor's management knew that the business could not continue on its existing terms, and it began to reduce its exposure to Defendant before the bankruptcy filing.

The Transfers

11. During the ninety days before the petition date, the Debtor made at least four payments to Defendant, in the aggregate amount of $412,500.00, from its operating account (the "Transfers"). Each Transfer was made on account of an antecedent debt owed to Defendant under the credit facility.

12. The Transfers were made while the Debtor was insolvent. The Debtor's balance sheet, prepared as of the date of the first Transfer, shows liabilities that exceeded the fair value of its assets.

13. Defendant is not an insider of the Debtor. The Transfers followed the Debtor's default notices. Defendant gave the Debtor no new value in exchange for the Transfers.

Demand

14. Before filing this complaint, Plaintiff sent Defendant a written demand for the return of the Transfers. Defendant did not return any part of them.

FIRST CLAIM FOR RELIEF

Avoidance of Preferential Transfers (11 U.S.C. §§ 547(b) and 550)

15. Plaintiff incorporates the allegations above.

16. The Transfers were transfers of an interest of the Debtor in property. Each Transfer was made to or for the benefit of Defendant, a creditor. Each Transfer was made for or on account of an antecedent debt. Each Transfer was made while the Debtor was insolvent, and within ninety days before the petition date.

17. Defendant received more than it would have received in a chapter 7 liquidation had the Transfers not been made. Plaintiff is therefore entitled to avoid the Transfers under 11 U.S.C. § 547(b), and to recover their value from Defendant under 11 U.S.C. § 550(a)(1).

SECOND CLAIM FOR RELIEF

Avoidance of Constructively Fraudulent Transfers (11 U.S.C. §§ 548(a)(1)(B) and 550)

18. Plaintiff incorporates the allegations above.

19. To the extent any Transfer was made for a debt that was not an antecedent debt, or was otherwise made for less than reasonably equivalent value, the Debtor received less than reasonably equivalent value for it at a time when the Debtor was insolvent, or became insolvent as a result of it.

20. Plaintiff is therefore entitled to avoid those Transfers under 11 U.S.C. § 548(a)(1)(B), and to recover their value from Defendant under 11 U.S.C. § 550(a)(1).

PRAYER FOR RELIEF

21. WHEREFORE, Plaintiff requests that the Court enter judgment:

(a) Avoiding the Transfers under 11 U.S.C. §§ 547(b) and 548(a)(1)(B);

(b) Directing Defendant to pay Plaintiff the value of the Transfers, $412,500.00, or such other amount as the evidence establishes, under 11 U.S.C. § 550(a)(1), with interest as allowed by law;

(c) Preserving the avoided Transfers for the benefit of the estate under 11 U.S.C. § 551;

(d) Awarding Plaintiff its costs of suit; and

(e) Granting such other relief as the Court finds just.

Dated: October 14, 2026

Respectfully submitted,

/s/ Jordan Example
State Bar No. 000000
EXAMPLE & SAMPLE PLLC
Attorneys for Plaintiff